

NOTE: A SEPARATE PETITION MUST BE FILED FOR EACH CRIMINAL CASE AND THE CHARGE(S) MUST BE LISTED IN THIS PETITION FOR THE CHARGE(S) TO BE EXPUNGED. ADDITIONALLY, A COPY OF YOUR CURRENT EXPUNGEMENT ELIGIBILITY CERTIFICATION MUST BE ATTACHED TO THIS PETITION.

|                                                                                                                                                                                                     |                                                                                                                                                                                           |                                                                 |
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| AOC-496.2<br>Rev. 7-16<br>Page 1 of 2<br>Commonwealth of Kentucky<br>Court of Justice <a href="http://www.courts.ky.gov">www.courts.ky.gov</a><br>KRS 431.078; 218A.275(8);<br>218A.276(8); 431.079 | <br><b>PETITION FOR EXPUNGEMENT</b><br>(FOR MISDEMEANOR, VIOLATION, OR<br>TRAFFIC INFRACTION CONVICTION) | Case No. _____<br>Court _____<br>County _____<br>Division _____ |
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|                                                                                  |                                 |           |
|----------------------------------------------------------------------------------|---------------------------------|-----------|
| COMMONWEALTH OF KENTUCKY                                                         |                                 | PLAINTIFF |
| VS.                                                                              |                                 |           |
| _____ NAME                                                                       | DEFENDANT                       |           |
| _____ ADDRESS                                                                    |                                 |           |
| _____ PHONE NUMBER                                                               | Jail ID Number _____ (optional) |           |
| Defendant's Birthdate: _____ Defendant's SSN: _____ Violation/Arrest Date: _____ |                                 |           |

Comes now the Defendant herein, and petitions the Court, pursuant to KRS 431.078, to expunge the following misdemeanor, violation, or traffic infraction charge(s) in the above-referenced case:

|               |               |
|---------------|---------------|
| CHARGE: _____ | CHARGE: _____ |
| CHARGE: _____ | CHARGE: _____ |
| CHARGE: _____ | CHARGE: _____ |

- In support of this Petition, the Defendant states as follows:
- The Defendant was convicted of the misdemeanor(s), violation(s) or traffic infraction(s) charged above.
  - The above-stated offense(s) is/are not a sex offense(s) or an offense(s) committed against a child.
  - The Defendant has not, been convicted of a felony or misdemeanor in the five years prior to the filing of this Petition.
  - The offense(s) is/are not subject to enhancement for a second or subsequent offense or the time for such enhancement has expired.
  - No proceeding concerning a felony or misdemeanor is pending or being instituted against Defendant.
  - This petition ☐ is filed no sooner than five (5) years after completion of Defendant's sentence or five (5) years after successful completion of the Defendant's probation, whichever is later; **OR** ☐ involves Defendant's 1st conviction for possession of controlled substances voided under KRS 218A.275(8); **OR** ☐ involves a conviction for possession of marijuana or synthetic drugs or salvia voided under KRS 218A.276(8).
  - List the names and addresses of all victims of the crimes listed above and any other person(s) whom Defendant/Petitioner has reason to believe may have information relevant to the expungement:

**Victims:** \_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

**Persons with relevant information:** \_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

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|                                                                                                                                                                                                     |                                                                                                                                                                                             |                                                                               |
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| AOC-496.2<br>Rev. 7-16<br>Page 1 of 2<br>Commonwealth of Kentucky<br>Court of Justice <a href="http://www.courts.ky.gov">www.courts.ky.gov</a><br>KRS 431.078; 218A.275(8);<br>218A.276(8); 431.079 | <br><b>PETITION FOR EXPUNGEMENT</b><br>(FOR MISDEMEANOR, VIOLATION, OR<br>TRAFFIC INFRACTION CONVICTION) | Case No. <u>24-CR-001234</u><br>Court _____<br>County _____<br>Division _____ |
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|                                                                                                                  |              |                                                     |
|------------------------------------------------------------------------------------------------------------------|--------------|-----------------------------------------------------|
| COMMONWEALTH OF KENTUCKY                                                                                         |              | PLAINTIFF                                           |
| VS.                                                                                                              |              |                                                     |
| Jordan Avery Reyes                                                                                               | NAME         | DEFENDANT                                           |
| 118 Maple Street                                                                                                 | ADDRESS      |                                                     |
| 118 Maple Street                                                                                                 |              |                                                     |
| 555-0142                                                                                                         | PHONE NUMBER | Jail ID Number <u>Jordan Avery Reyes</u> (optional) |
| Defendant's Birthdate: <u>1991-04-17</u> Defendant's SSN: <u>Jordan Avery Reyes</u> Violation/Arrest Date: _____ |              |                                                     |

Comes now the Defendant herein, and petitions the Court, pursuant to KRS 431.078, to expunge the following misdemeanor, violation, or traffic infraction charge(s) in the above-referenced case:

|               |               |
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| CHARGE: _____ | CHARGE: _____ |
| CHARGE: _____ | CHARGE: _____ |
| CHARGE: _____ | CHARGE: _____ |

- In support of this Petition, the Defendant states as follows:
- The Defendant was convicted of the misdemeanor(s), violation(s) or traffic infraction(s) charged above.
  - The above-stated offense(s) is/are not a sex offense(s) or an offense(s) committed against a child.
  - The Defendant has not, been convicted of a felony or misdemeanor in the five years prior to the filing of this Petition.
  - The offense(s) is/are not subject to enhancement for a second or subsequent offense or the time for such enhancement has expired.
  - No proceeding concerning a felony or misdemeanor is pending or being instituted against Defendant.
  - This petition ☐ is filed no sooner than five (5) years after completion of Defendant's sentence or five (5) years after successful completion of the Defendant's probation, whichever is later; **OR** ☐ involves Defendant's 1st conviction for possession of controlled substances voided under KRS 218A.275(8); **OR** ☐ involves a conviction for possession of marijuana or synthetic drugs or salvia voided under KRS 218A.276(8).
  - List the names and addresses of all victims of the crimes listed above and any other person(s) whom Defendant/Petitioner has reason to believe may have information relevant to the expungement:

**Victims:** \_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

**Persons with relevant information:** \_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

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Rev. 7-16  
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County \_\_\_\_\_  
Case No. \_\_\_\_\_

The Defendant prays that this Petition for Expungement of a Misdemeanor, Violation, or Traffic Infraction Conviction be granted and that this Court enter an Order that the following agencies expunge any records in the agencies custody regarding these charges: **LIST AGENCIES AND ADDRESSES HERE:**

\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

Note: Defendant/Petitioner must sign this petition **in the presence of** a notary **or** the circuit court clerk so that the notary/ clerk can notarize his/her signature.

Date: \_\_\_\_\_, \_\_\_\_\_, \_\_\_\_\_ Defendant/Petitioner Signature

Print Form

Reset Form

Subscribed and sworn to before me by \_\_\_\_\_  
this \_\_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_.  
\_\_\_\_\_

Notary/Clerk

My commission expires: \_\_\_\_\_, \_\_\_\_\_. By: \_\_\_\_\_ D.C.

**THERE IS A \$100 FEE PER CASE, PAYABLE AT THE TIME OF FILING. THE CLERK CANNOT TAKE YOUR PETITION WITHOUT PROPER PAYMENT OF THE FEE. IF AN EXPUNGEMENT ORDER IS NOT GRANTED, \$50.00 OF THIS FEE IS NOT REFUNDABLE.**

**NOTIFICATION OF EXPUNGEMENT HEARING**

This case is set for a hearing on \_\_\_\_\_, \_\_\_\_\_, at the hour of \_\_\_\_\_ ☐ a.m. ☐ p.m. at the \_\_\_\_\_ ☐ District ☐ Circuit Court.

Dated this \_\_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_.  
\_\_\_\_\_

Clerk

By: \_\_\_\_\_ D.C.

**FOR CLERK USE ONLY**

This Petition for Expungement was sent on the \_\_\_\_\_ day of \_\_\_\_\_, \_\_\_\_\_, to Defendant/ Petitioner or his/her attorney; the County Attorney; all crime victim(s) identified by Defendant/Petitioner or in the court record sought to be expunged; and all other person(s) whom Defendant/Petitioner has reason to believe may have information relevant to the expungement.

\_\_\_\_\_  
Clerk

By: \_\_\_\_\_ D.C.

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Rev. 7-16  
Page 2 of 2

County \_\_\_\_\_  
Case No. **24-CR-001234**

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Date: \_\_\_\_\_, \_\_\_\_\_, \_\_\_\_\_ Defendant/Petitioner Signature

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\_\_\_\_\_

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Clerk

By: \_\_\_\_\_ D.C.

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\_\_\_\_\_  
Clerk

By: \_\_\_\_\_ D.C.